

The motion was filed on February 3, 2025. However, the following discovery sets were served in November of 2024: Jack Saba's requests for production, set one, John Saba's first set of requests for production, set one, George Saba's requests for production, set one, and all three Plaintiffs' special interrogatories, set one.

Defendant has not shown that Plaintiffs granted her an extension to file this motion and/or raise Defendant's objections. Furthermore, Defendant failed to establish in her motion that she objected to any of these discovery requests in a timely manner.

Accordingly, the court DENIES the motion for a protective order as to all three Plaintiffs' Requests for Production, Set One, and Special Interrogatories, Set One.

Meet and Confer

A motion for a protective order must be accompanied by a declaration showing the moving party made a reasonable and good faith attempt to resolve the issues outside of court. (Code Civ. Proc. §§ 2016.040, 2030.090(a), 2031.060(a), 2033.080(a).)

Plaintiffs contend that Defendant did not properly meet and confer before filing this motion. Code Civ. Proc. § 2016.040 requires the following: "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion."

Defendant's counsel, Mr. Duncombe, declared that on December 30, 2024, he sent a meet and confer letter to Plaintiffs. (Ex. H to Decl. of Duncombe). This letter sets forth Defendant's position and proposes that the parties stipulate to limit discovery. The court finds this to be sufficient.

Notice of Motion

Next, Plaintiffs contend that Defendant's notice of motion is improper/insufficient because it does not specify the sets of discovery that Defendant seeks to limit. However, the memorandum of points and authorities makes clear that Defendant is seeking to impose limitations on the general amount of interrogatories, requests for admissions, and requests for production that Plaintiffs propounded.

Accordingly, the court will address the merits of the discovery sets that Defendant timely objected to.

George, Jack and John Saba's Form Interrogatories, Set One

First, with regards to the form interrogatories, Plaintiffs each propounded 26 form interrogatories to Defendant. Defendant has not shown that these form interrogatories are so burdensome as to warrant a protective order.

Accordingly, the court DENIES the motion as to Plaintiffs George, Jack and John Saba's Form Interrogatories, set one.

George and John Saba's Requests for Production, Set Two

John Saba propounded 27 requests for production in his second set. These requests pertain to financial documents and the Irrevocable Trust.

George Saba propounded 115 requests for production in his second set. These requests include Defendant's bank account statements/any account in which she was a signatory, financial and bank documents relating to Settlor, checks to counsel, documents showing reasons for specific withdrawals, documents relating to expenses, documents relating to itemizations, inventory, documents relating to the Trust, documents relating to rental income, and other similar requests.

Defendant has not met her burden of proving that these requests are unnecessarily oppressive or constitute an undue burden.

Accordingly, the court DENIES the motion as to Plaintiffs George and John Saba's Requests for Production, Set Two

George, Jack and John Saba's Requests for Admissions, Set One

With regards to the requests for admissions, George Saba propounded a total of 221 requests; John Saba propounded a total of 170 requests; and Jack Saba propounded a total of 117 requests. (See Ex. E to Decl. Duncombe). All three Plaintiffs provided a declaration for additional admissions with their requests. In their declarations, all three Plaintiffs attested that the number of requests for admissions is warranted because the issues involved in this action are numerous and complex. (See Ex. "E": Decl. of Jack Saba, ¶ 9, Decl. of John Saba, ¶ 9, Decl. of George Saba, ¶ 9).

Plaintiffs' requests pertain to matters such as: each specific transaction that Defendant undertook during the relevant time frame; each of Defendant's actions that were alleged to amount to breach of fiduciary duty; various facts regarding Settlor; various facts regarding Defendant; various facts regarding Plaintiff's backgrounds; the relationship between Settlor and Defendant; the Settlor's decline; the actions regarding the execution of the 2015 restatement, and other more detailed requests that are related to the allegations in the complaint.

The court finds that this matter is complex, and will require a factually sensitive inquiry regarding Defendant's relationship with Settlor, Defendant's handling of Settlor's finances, a close look into the bank account(s) at issue, the interactions that unfolded when the new trust was created, etc.

However, the court also finds that each of these sets of requests could be more succinct. Furthermore, while each party is entitled to propound its own discovery, all of Plaintiffs' allegations against Defendant are the same, and there are no particular issues that are unique as to each Plaintiff. Rather, all three Plaintiffs are contending that Defendant committed fraud and engaged in other unlawful actions when she convinced the Settlor (who is the mother to all three Plaintiffs and Defendant) to alter the Trust.